ADOPTED October 19, 2026

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

AMENDMENT TO LOCAL RULE 25

PLEASE TAKE NOTICE that the Court intends to amend Local Rule 25 to allow pro se parties to consent to receiving electronic service of publicly filed documents in cases pending before the Court.

Local Rule 25(a)(4) will be amended to remove the requirement that a party who is a non-registered CM/ECF user must be served only by conventional means outside the CM/ECF system and, instead, to permit such party to consent to the option of electronic service by email. Additionally, the subsection will be amended to clarify that restricted documents, like sealed documents, cannot be served electronically.

The attached amendments to Local Rule 25(a)(4) are scheduled to take effect October 19, 2026, subject to revision in light of comments received. Interested parties may submit comments on or before October 9, 2026, to:

Nwamaka Anowi, Clerk
U.S. Court of Appeals for the Fourth Circuit
1100 E. Main Street, Suite 501
Richmond, Virginia 23219

or via email to:
rulecomments@ca4.uscourts.gov

The Fourth Circuit Rulebook is available here.

September 23, 2026
Date

/s/ Nwamaka Anowi
Clerk

Local Rule 25(a). Electronic Case Filing System.

With the exception of administrative matters, all cases filed in the Court are assigned to the Court's Case Management/Electronic Case Filing System (CM/ECF).

(1) ***Scope of Electronic Filing.*** *Unless granted an exception for good cause or unless filing only a disclosure statement or a motion to withdraw from representation, counsel must file all documents in accordance with the requirements of this rule. Pro se litigants are not required to file documents electronically but may be authorized to file electronically in a pending case upon compliance with the Court's CM/ECF registration requirements. Documents filed electronically must be filed in Portable Document Format (PDF). Text-searchable format is required for briefs and preferred for all documents. Except as provided below or ordered by the Court, paper copies of electronic documents are not required.*

(A) ***New Cases.*** *New petitions for review, applications for enforcement, petitions for permission to appeal, petitions for mandamus or prohibition, and motions to authorize successive post-conviction applications must be filed using one of the following options:*

(i) ***Submit New Case through CM/ECF Utilities:*** *File petition in electronic form by selecting "Submit New Case" under CM/ECF Utilities and uploading the petition as a new case. Paper copies are not required, but the petition must be served conventionally, outside the CM/ECF system. The petition is deemed filed as of the date the electronic document was received by the clerk's office.*

or

(ii) ***File in Paper Form:*** *File the original petition in paper form and serve the petition conventionally, outside the CM/ECF system. The petition is filed as of the date the paper document was received in the clerk's office. Additional copies are not required.*

(B) ***Briefs.*** *Formal briefs must be filed and served electronically. In addition, counsel must file any paper copies required by Local Rule 31(d). The brief is deemed filed as of the date and time stated on the notice of docket activity for the electronic brief, provided that any required paper copies are mailed, dispatched to a third-party commercial carrier, or delivered to the clerk's office by the next business day. Service of the paper brief is not required if the brief was served electronically on counsel and on any party not represented by counsel.*

(C) ***Appendices.*** *Formal appendices must be filed and served electronically. In addition, counsel must file any paper copies required by Local Rule 30(b)(4). The appendix is deemed filed as of the date and time stated on the notice of docket activity for the electronic filing of the appendix, provided that any required paper copies of the appendix are mailed, dispatched to a third-party commercial carrier, or delivered to the clerk's office by the next business day. Service of the paper appendix is not required if the electronic appendix was served on counsel and on any party not represented by counsel.*

(D) ***Vouchers.*** *Criminal Justice Act and other payment vouchers are maintained as financial records and filed outside the CM/ECF system.*

(2) ***Eligibility, Registration, Passwords.*** *Attorneys who intend to practice in this Court and pro se parties who wish to file electronically in a pending case should register as filing users of the Court's CM/ECF system.*

Registration for electronic filing constitutes consent to electronic service of all documents as provided in this rule and the Federal Rules of Appellate Procedure. Filing users agree to protect the security of their passwords and immediately notify the PACER Service Center and the clerk if

they learn that their password has been compromised. Filing users may be sanctioned for failure to comply with this provision.

A filing user may withdraw from participation in CM/ECF by providing the clerk with written notice of withdrawal. A filing user's withdrawal from participation in CM/ECF does not alter the requirement that documents be filed in compliance with this rule.

(3) ***Consequences of Electronic Filing.*** *Electronic transmission of a document to CM/ECF consistent with this rule, together with the transmission of a notice of docket activity from the Court, constitutes filing of the document under the Federal Rules of Appellate Procedure and the Court's local rules and constitutes entry of the document on the docket kept by the clerk under FRAP 36 and 45(b).*

A document filed electronically is deemed filed at the date and time stated on the notice of docket activity from the Court. Unless otherwise directed by the Court, filing must be completed before midnight Eastern Time, as shown on the notice of docket activity, to be considered timely filed that day.

Before filing a document with the Court, a filing user must verify its legibility and completeness. When a document has been filed electronically, the official record is the electronic document stored by the Court, and the filing party is bound by the document as filed.

If an extension of time or leave of Court is required to file a document, a filing user should file the motion to extend filing time or other appropriate motion using the motion event and the underlying document using the document event. If the Court denies the motion, it will strike the underlying document. If the Court grants the motion, the underlying document will remain on the docket.

(4) ***Service of Documents by Electronic Means.*** *The notice of docket activity that is generated by the Court's electronic filing system constitutes service of the filed document on any registered CM/ECF users and any non-registered CM/ECF users who have properly consented to electronic service by email, and proof of service is not required as to such users. Parties who are not registered ~~for electronic service through~~ CM/ECF users and who have not properly consented to electronic service by email must be served conventionally, outside the CM/ECF system, with a copy of any document filed electronically, and proof of service is required in accordance with FRAP 25(d).*

If a document (such as a sealed or restricted document or a new case) cannot be served electronically, the filer must serve the document conventionally, outside the CM/ECF system, and file proof of service.

(5) ***Entry of Court-Issued Documents.*** *Except as otherwise provided by local rule or Court order, all orders, decrees, opinions, judgments, and proceedings of the Court relating to cases filed and maintained in the CM/ECF system will be filed electronically in accordance with these rules, which will constitute entry on the docket kept by the clerk under FRAP 36 and 45(b).*

Any order or other Court-issued document filed electronically without the original signature of a judge or authorized court personnel has the same force and effect as if the judge or clerk had signed a paper copy of the order.

(6) ***Attachments and Exhibits to Motions and Original Proceedings.*** *Unless the Court permits or requires traditional paper filing, filing users must submit in electronic form all documents referenced as exhibits or attachments. Material should be excerpted to include only such portions as are germane to the matter under consideration by the Court. Excerpted material must be clearly and prominently identified as such. The Court may require parties to file additional excerpts or the complete document.*

(7) ***Sealed Documents.*** *Sealed material must be filed in accordance with Local Rule 25(c) and served conventionally, outside the CM/ECF system.*

(8) ***Retention Requirements.*** *Documents that are electronically filed and require original signatures other than that of the filing user must be maintained in paper form by the filing user for a period of three years after issuance of the Court's final mandate in the case. On request of the Court, the filing user must provide original documents for review.*

(9) ***Signatures.*** *The user log-in and password required to submit documents to the CM/ECF system, together with that person's name on a signature block, serve as the filing user's signature on all electronic documents filed with the Court. They also serve as a signature for purposes of the Federal Rules of Appellate Procedure, the Court's local rules, and any other purpose for which a signature is required in connection with proceedings before the Court.*

No filing user or other person may knowingly permit or cause to permit a filing user's log-in and password to be used by anyone other than an authorized agent of the filing user.

Documents requiring signatures of more than one party must be electronically filed either by: submitting a scanned document containing all necessary signatures; representing the consent of the other parties on the document; identifying on the document the parties whose signatures are required and submitting a notice of endorsement by the other parties no later than three business days after filing; or any other manner approved by the Court.

Electronically represented signatures of all parties and filing users as described above are presumed to be valid signatures. If any party, counsel of record, or filing user objects to the representation of his or her signature on an electronic document as described above, he or she must, within 10 days, file a notice setting forth the basis of the objection.

(10) ***Notice of Court Orders and Judgments.*** *Immediately upon the entry of an order, judgment, or opinion in a case assigned to CM/ECF, the clerk will electronically transmit a notice of docket activity to filing users in the case. Electronic transmission of the notice of docket activity constitutes the notice and service required by FRAP 36(b) and 45(c).*

The clerk must give notice in paper form to a person who has not consented to electronic service in accordance with the Federal Rules of Appellate Procedure.

(11) ***Technical Failures.*** *A party or attorney who is adversely affected by a technical failure in connection with filing or receipt of an electronic document may seek appropriate relief from the Court.*

(12) ***Hyperlinks.*** *Electronically filed documents may contain hyperlinks to: other portions of the same document or other documents filed on appeal; documents filed in the lower court that are part of the record on appeal; and statutes, rules, regulations, and opinions.*

Hyperlinks do not replace citations to the appendix, record, or legal authority and are not considered part of the appellate record. Documents must contain standard citations in support of statements of fact or points of law, in addition to any hyperlink. The Court accepts no responsibility for the availability or functionality of any hyperlink and does not endorse any organization, product, or content at any hyperlinked site.